

8	Richardson vs. Steward 30-2023-01346448	Motion to Deem Facts Admitted filed by John Steward on 10/30/24 Off Calendar
9	Taylor vs. FPI Property Management 30-2024-01423495	1. Demurrer to Complaint 2. Motion to Strike filed by Ray Pesos, Jorge Nunez, FPI Property Management on 11/25/2024 3. Case Management Conference Defendants FPI Management, Inc., Jorge Nunez, and Ray Pesos filed two motions attacking the allegations in the original complaint: (1) a motion to strike punitive damages; and (2) a demurrer to the first cause of action for premise liability and third cause of action for negligent hiring, retention, and supervision as alleged against Defendant Jorge Nunez only. <i>Motion to Strike</i> First, Plaintiff's opposition to the motion to strike states that the arguments in the motion to strike are well-taken. Plaintiff requests leave to amend to cure the deficiencies discussed in the motion to strike. The Motion to Strike is GRANTED with 20 days leave to amend. <i>Demurrer</i> Second, Defendants' demurrer attacks the allegations against Defendant Jorge Nunez as to the first cause of action for premise liability and third cause of action for negligent hiring, retention, and supervision. Defendant demurs to the first cause of action for premise liability on the grounds that it is duplicative of the second cause of action for negligence. The Court agrees with Plaintiff "elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." <i>Gonzalez v. Interstate Cleaning Corp.</i>, 106 Cal. App. 5th 1026, 1034 (2024), <i>as modified</i> (Nov. 21, 2024).